Mana Motuhake Policy

māori

Ka whawhai tonu mātou, ake, ake, ake!

Executive Summary

There is a new generation of Tangata Whenua and Tangata Tiriti who recognise that being forced to work within the system does not suit our struggle for mana motuhake. It is time to dismantle this system so we can rebuild one that works for everybody.

The only way this nation can work is when Māori assert our rights to self-management, self-determination, and self-governance over all our domains.

Our vision is for constitutional transformation that rebalances the scales of power in Aotearoa. That restores the tino rangatiratanga of Tangata Whenua, and truly embodies that was envisaged by our tupuna in 1840.

We don't just talk about Land Back, we will force the Crown to return our land.

Te Tiriti o Waitangi is the foundation of a living, evolving relationship between tangata whenua and the Crown. The tino rangatiratanga of Tangata Whenua is inalienable.

Te Pāti Māori will:

- Establish a Māori Parliament
- Implement all Matike Mai recommendations for constitutional transformation
- Remove the British Royal Family as Head of State
- Recognise Aotearoa as the country's official name
- Return the foreshore and seabed to mana whenua
- Return all central and local government land to mana whenua
- Return all conservation land to mana whenua
- Introduce a first right of refusal policy for mana whenua on all private land
- End all land sales to foreign interests to be replaced by leasehold estates only
- End perpetual leases
- End the fiscal envelope
- Insert relativity clauses into all Te Tiriti settlements retrospectively
- Make Waitangi Tribunal recommendations binding on the Crown, and implement all unaddressed WAI claim recommendations
- Abolish "full and final" and "large natural groupings" settlement policies
- Entrench the Māori electorates

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- Legislate for all local and regional councils to have both Māori wards and mana whenua representation
- Establish a Parliamentary Commissioner for Te Tiriti o Waitangi to provide oversight of the Crown's annual performance and complying with Te Tiriti.

Context

Since 1840, the retention and return of land has been the most significant political aspiration of Tangata Whenua, the unifying struggle of the tino rangatiratanga movement.

In 1975, Dame Whina Cooper's land march ushered in an era of noho whenua (land occupations) including at Takaparawhā (Bastion Point) in 1977, Whāingaroa (the Raglan golf course) in 1978, Pākaitore (Moutoa Gardens) in 1995, and Ngāwha and Te Kuri a Pāoa in the early 2000s.

Over the last decade, the Land Back movement has stretched across the Indigenous world and breathed new life into the fight for land and sovereignty. In Aotearoa, this was demonstrated by the successful four-year Ihumātao land occupation.

The land march also led to the establishment of the Waitangi Tribunal in 1975 to consider contemporary breaches of Te Tiriti. In 1985 the tribunal was empowered to hear historical grievances dating back to 1840.

The strong desire of the Crown and tangata whenua to settle historical Treaty grievances has led to a mainstream narrative that this will be led to the Treaty itself being settled, and the end of Māori-Crown reconciliation under Te Tiriti.

But as Moana Jackson has so often said, treaties are not settled, they're honoured.

Te Tiriti is a document that is the foundation of a living, evolving relationship between tangata whenua and the Crown. Both parties to Te Tiriti must continually strive to meet the obligations it sets out and implement the three articles in everything we do.

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Since 2020, Te Pāti Māori have demonstrated the power of Tangata Whenua to challenge and disrupt colonial systems of power and control, and progress transformation of our constitutional norms through constant vigilance.

The Westminster system continues to oppress and use colonising tools to constrain efforts to reclaim our land and our mana motuhake.

It is only by restoring power and resource to Tangata Whenua, by establishing our own parallel systems of government and management systems that we can achieve mana motuhake.

We must continue to assert our tino rangatirantanga across all our domains and at every opportunity work to build a united movement for liberation and emancipation.

By working alongside Tangata Tiriti and Tangata Moana, we can decolonise and reindignise Aotearoa and realise the vision of an Aotearoa Hou, taking our rightful place on the world stage as a Te Tiriti-based nation in Te Moananui-ā-Kiwa.

Solutions

Implementing constitutional transformation

Matike Mai Aotearoa, the Independent Working Group on Constitutional Transformation, was first promoted at a meeting of the Iwi Chairs' Forum in 2010 to develop and implement a model for an inclusive Constitution for Aotearoa based on tikanga and kawa, He Whakaputanga o te Rangatiratanga o Niu Tireni of 1835, Te Tiriti o Waitangi of 1840, and other indigenous human rights instruments which enjoy a wide degree of international recognition.

The working group, led by Moana Jackson and Margaret Mutu, undertook a significant process of engagement over several years with tangata whenua right across Aotearoa.

Te Pāti Māori commits to implementing all Matike Mai recommendations. It is well past time that Aotearoa undertook the fundamental constitutional transformation that these recommendations prescribe. We will always champion

the introduction of constitutional guarantees of the tino Rangatiratanga and mana motuhake of whānau, hapū and iwi.

In addition to te implementing the Matike Mai recommendations, Te Pāti Māori put forward the following solutions to get kickstart our reclamation of tino rangatiratanga.

1. **Māori Parliament**

We demand a Māori Parliament. Our right to self-governance and self-determination is clear.

Governance and management of programmes and funding streams for by Māori, for Māori, according to Māori kaupapa, such as the independent authorities outlined in Te Pāti Māori policies, will be transferred to our Māori Parliament, where our people can hold their own leaders accountable.

There is even precedence for this kind of governmental devolution – just look at the Irish, the Scots and the Welsh. Westminster did not work for the Scots or the Irish - Wellington definitely does not work for Māori.

2. **Remove British Royal Family as Head of State**

If you look at our founding covenant as a marriage between tangata whenua and the Crown, then Te Tiriti is the child of that marriage. It's time Tangata Whenua to take full custody of Te Tiriti o Waitangi from the Crown.

Te Pāti Māori will remove the British Royal Family as Head of State.

This won't mean the Crown is off the hook. If a couple gets divorced, you don't lose responsibility for your child. This will be an opportunity to reimagine a more meaningful and fulfilling partnership, between Tangata Whenua and Tangata Tiriti.

3. **Official name changes**

Te Pāti Māori will recognise Aotearoa as the country's official name, and begin a process, alongside whānau, hapū and iwi, to identify and officially restore the original te reo Māori names for all towns, cities, and places right across the country by 2026.

People are hungry for change. There is a new generation who want to see themselves reflected in our country's identity. The status quo is no longer

consistent with who we are as a nation. 70,000 people signed Te Pāti Māori's petition which was delivered to Parliament in June 2022.

This is not about getting rid of anything or changing who we are. It's about reinstating the original names of this land and strengthening who we are as a nation.

Land Back

Since 1840, the retention and return of land has been the most significant political aspiration of Tangata Whenua, the unifying struggle of the tino rangatiratanga movement.

In 1975, Dame Whina Cooper's land march ushered in an era of noho whenua (land occupations) including at Takaparawhā (Bastion Point) in 1977, Whāingaroa (the Raglan golf course) in 1978, Pākaitore (Moutoa Gardens) in 1995, and Ngāwha and Te Kuri a Pāoa in the early 2000s.

Over the last decade, the Land Back movement has stretched across the Indigenous world and breathed new life into the fight for land and sovereignty. In Aotearoa, this was demonstrated by the successful four-year Ihumātao land occupation.

Te Pāti Māori won't just talk about Land Back, we will implement policies that immediately restore ownership of land and sea to Tangata Whenua.

1. ***Foreshore and seabed***

In 2011 Te Pāti Māori successfully repealed the Foreshore and Seabed Act 2004, which represented the biggest confiscation in the history of Aotearoa. While its replacement, the Marine and Coastal Area Act (Takutai Moana) Act 2011 is an improvement, it still locks out most hapū and iwi from being able to claim their legal rights.

Te Pāti Māori will repeal the Marine and Coastal Area Act and return the foreshore and seabed to mana whenua.

2. ***Crown and council land***

Te Pāti Māori will return all land currently held by central and local government to mana whenua.

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The Crown has no right to retain land that was stolen from Tangata Whenua. If it needs to use certain land blocks, it can legally purchase or lease that land from its rightful owners.

3. *Conservation land*

Te Pāti Māori will return all conservation land to mana whenua.

It is immoral that the Crown refuses to return conservation and continues to promote a racist and paternalistic view that only they can protect biodiversity.

Whānau, hapū and iwi are the kaitiaki of our own whenua, awa and moana. Returning conservation land isn't just the right thing to do, it makes the most environmental sense.

4. *Private land*

Te Pāti Māori will introduce a first right of refusal policy for mana whenua on all private land.

We do not think that landowners should have land forcibly purchased or taken from them, as in many cases happened to our tupuna. However, when land is put up for sale, it must first be offered to recognised mana whenua of that land.

While this won't always be taken up, over time this will ensure that Tangata Whenua restore significant tracts of land to their rightful owners. This policy has the power to revolutionise Māori social, economic, and environmental outcomes.

Te Pāti Māori will also end perpetual leases and return control of whenua to it's rightful owners.

Overhauling the Te Tiriti settlement process

Te Pāti Māori will overhaul the Treaty settlement process, reforming it to create a new Te Tiriti reconciliation process that is fair, durable and considers new precedent.

We are clear that fundamental reform is needed to the settlement process. The key Crown policy settings for negotiations that must change if the process is to be durable and have the confidence of tangata whenua. We should instead look to an ongoing process for Māori-Crown reconciliation and relationship-building.

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Te Pāti Māori will end the fiscal envelope and insert relativity clauses into all Te Tiriti settlements, to ensure there is parity with Ngāi Tahu and Waikato-Tainui.

We would also empower the Waitangi Tribunal by legislating to make their recommendations binding on the Crown, and we would work to implement all WAI claim recommendations that have been unaddressed over the last several decades.

1. ***Ending full and final settlements and large natural groupings***

The Crown's "full and final" policy - wanting to settle all the historical claims with an iwi grouping at once in one settlement, is a breach of Te Tiriti.

Te Pāti Māori wants to see an end to "full and final" settlements, to allow historical claims to be revisited, and new claims brought, where situations have changed or whānau, hapū or iwi groups were shut out of the original negotiations.

Often groups are shut out of negotiations due the Crown's large natural groupings policy, which doesn't recognise the mandate of whānau, hapū and relatively small iwi. Time and time again hapū with legitimate claims have been shut down in negotiations and this has caused further harm. This divide and rule tactic has created new Te Tiriti breaches even as the Crown tries to settle historical breaches.

Hapū are the primary political unit in te ao Māori. Te Pāti Māori uphold hapūtanga and recognise that it was the rangatira of hapū that signed Te Tiriti, and so we would ensure that the Crown negotiates with whānau and hapū and recognises their mana whenua.

Ensuring effective Crown oversight

1. ***Electoral reform***

It's critical that our people are able to participate in Crown decision-making processes fairly and accessibly. The threat of removing Māori representation is often used as a weapon against our people. We must entrench the Māori electorates and require all local and regional councils to have both Māori wards and mana whenua representation.

2. ***Parliamentary Commissioner for Te Tiriti o Waitangi***

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Te Pāti Māori will establish a Parliamentary Commissioner for Te Tiriti o Waitangi to provide oversight and ensure that the Crown meets its obligations under the Treaty partnership.

Currently there is no oversight of legislation or Crown departments and agencies from a Te Tiriti perspective. That's unacceptable. The Crown has an environmental commission, a human rights commission, a disability commission – it's well past time to establish a Treaty commission.

The Parliamentary Commissioner for Te Tiriti o Waitangi will have functions and powers to enable them to:

- Review and investigate priority issues of concern
- Provide advice to Parliament
- Contribute to public debate through the provision of information and analysis

The Commissioner will be appointed for a five-year term on the recommendation of hapū, iwi and Māori organisations. Based on the budgets for other parliamentary commissioners, establishing this office would require approximately $4m in funding per annum.

3. Te Tiriti o Waitangi impact statements

Currently, Te Tiriti is only formally considered in legislation and regulation when the Government considers it relevant. However, we know that all Crown laws and regulations have impacts on tangata whenua and on the implementation of Te Tiriti.

Te Pāti Māori will ensure that all pieces of legislation, executive regulations and cabinet papers are required to have Te Tiriti impact statements